STATE OF MAINE

SUPREME JUDICIAL COURT
Docket No. SJC-23-2

STATE OF MAINE, ex rel. ANGELINA DUBE PETERSON and UNKNOWN OR UNCERTAIN PERSONS,

Petitioners,

v.

PETER A. JOHNSON, Aroostook County Sheriff, in his official capacity; WILLIAM L. KING, York County Sheriff, in his official capacity; UNKNOWN JAILERS, all in their official capacities; HON. SARAH GILBERT, Judge of the Maine District Court, in her official capacity; HON. CARRIE LINTHICUM, Judge of the Maine District Court, in her official capacity; and UNKNOWN JUDGES AND JUSTICES OF THE MAINE UNIFIED CRIMINAL DOCKET, all in their official capacities,

Respondents.

Petition for Writ of Habeas Corpus

INTRODUCTION

1. An unknown number of persons are currently in jail or otherwise face restrictions on their liberty while their criminal cases pend in Maine state courts, despite the fact that, though they are entitled to it, these individuals have not been provided counsel to represent them. Because of the failure of the State of Maine to appoint counsel entitled by the Maine Constitution, ME. CONST., Art. I. §§ 6 & 6-

A; the Sixth and Fourteen Amendments to the United States Constitution; and 15 M.R.S. § 810 and M.R.U.Crim. P. 44(a)(1), the persons on whose behalf this petition is brought are "unlawfully deprived of [their] personal liberty" by the above-named jailer- and bail-condition-imposing-respondents and are, therefore, entitled to relief from those deprivations. See 14 M.R.S. § 5501 et seq.

JURISDICTION

2. This Court has original jurisdiction in this proceeding pursuant to 14 M.R.S. § 5301, 14 M.R.S. § 5513, 14 M.R.S. § 5526, and 4 M.R.S. § 7.

3. This Court has personal jurisdiction pursuant to the foregoing and 14 M.R.S. § 704-A(2).

PARTIES

4. Undersigned Petitioners bring this petition on behalf of persons, both named and unnamed, who would be entitled to relief on their own application. See 14 M.R.S. § 5511 (authorizing "any person" to seek writ of habeas corpus on behalf of "any party alleged to be imprisoned or restrained of his liberty but not convicted and sentenced"); 14 M.R.S. § 5528 (if persons on whose behalf writ is sought are unknown or uncertain, those persons may be designated "in any other way so as to make known who is intended"). By rule, Petitioners thereby bring this action "in the name of the State of Maine." M.R.Civ.P. 17(a) ("[W]hen a statute so

provides, an action for the use or benefit of another shall be brought in the name of the State of Maine."); see also M.R.Civ.P. 17(a) ("[A] party authorized by statute may sue in that person's own name without joining the party for whose benefit the action is brought.").

5. Angelina Dube Peterson, a Maine resident incarcerated pending trial at York County Jail, is the sole named person on whose behalf this action is brought. See Docket Nos. AROCD-CR-2022-20116 & AROCD-CR-2023-20234 (attached to petition as PX 1 & 2, respectively). Ms. Peterson first appeared before the Aroostook County Unified Criminal Docket on June 28, 2023, at which time she was committed to the custody of the Aroostook County Jail, which has since transferred Ms. Peterson to the York County Jail. An order appointing counsel (Gilbert, J.) was issued on June 28, but the space where the name of that counsel was to be written was left blank. See PX 3. On either July 10 or July 12, Ms. Peterson was again "appointed counsel" on a related docket, (Linthicum, J.), but again no such attorney was identified. See PX4. On information and belief, Ms. Peterson remains imprisoned without counsel in these matters, subject to bail conditions should she be able to post bail. See PX 5 & 6.

6. Unnamed persons subject to relief, see 14 M.R.S. § 5528, include all those:

A. entitled to counsel pursuant to U.S. CONST. amends. VI & XIV; ME. CONST. Art., §§ 6, 6-A & 19; 15 M.R.S. § 810; M.R.U.Crim.P. 44(a)(1) in relation to a pending state-court criminal proceeding; and

B. who are currently, or will be in the future, "imprisoned or restrained of his liberty but not convicted and sentenced . . . ." 14 M.R.S. § 5511.

7. The undersigned endeavored to identify by name the unknown and uncertain individuals who fit these criteria. However, by email dated September 15, 2023, representatives of the Judicial Branch declined to provide this information, citing Administrative Order JB-05-20 (A. 4-21), Public Information and Confidentiality. See PX 7 (emails attached to this petition). Further, a Maine superior court judge recently suggested that "no one" really knows how many individuals fit these criteria. See Order on Joint Motion for Preliminary Settlement Approval, *Robbins v. MCILS, et al.*, KENSC-CV-22-54 ** 15-16 (Murphy, J., Sept. 13, 2023). Nonetheless, Petitioners have sufficiently "ma[d]e known who is intended" to benefit from this petition, by virtue of their specified criteria. See 14 M.R.S. § 5528. This Court holds the key to unlocking their identities.

8. In Maine, a county "sheriff has the custody and charge of the county jail and of all prisoners in that jail and shall keep it in person, or by a deputy as jailer, master or keeper." 30-A M.R.S. § 1501; see also 30-A M.R.S. § 454 (requiring each county – whose law enforcement responsibilities fall to sheriffs – to provide

for detention facilities). Such individuals may be "described by an assumed name" such as "Jailers" and "Jailer-Respondents." See 14 M.R.S. § 5527.

9. Respondent Peter A. Johnson is the Aroostook County Sheriff.

10. Respondent William L. King is the York County Sheriff.

11. Maine criminal-court judges impose bail conditions pursuant to 15 M.R.S. §§ 1021 & 1022. See also 4 M.R.S. § 114 & 165. Pursuant to 14 M.R.S. § 5527, Petitioners refer to these respondents as "Bailers" or "Bail-conditions-imposing-Respondents."

12. Respondent Hon. Sarah Gilbert is a judge of the Maine District Court.

13. Respondent Hon. Carrie Linthicum is a judge of the Maine District Court.

CLAIMS FOR RELIEF

14. First, this Court should facilitate discovery of the identities of those unnamed parties entitled to relief. See A.O. JB-05-20 (A. 4-21) at III.A.6 (permitting judges to order disclosure of data sought by the Petitioners); see M.R.Civ.P. 26(a), 34 (providing for discovery of "documents or things," and "other data compilations"); see also 14 M.R.S. 5517 (when official having custody of person subject to petition for writ "refuses or unreasonably delays" to deliver "an attested copy of the precept by which he restrains" the person subject to the

petition, Court "shall forthwith issue the writ as prayed for"); 14 M.R.S. § 5532(2) (providing for fines when custodian fails to provide warrant or process within 4 hours); see also Brandon L. Garrett, Habeas Corpus and Due Process, 98 CORNELL L. REV. 47, 66 (Nov. 2012) (noting availability of discovery in common law habeas proceedings). Respectfully, the dearth of available data makes tracking and remedying unlawful liberty restrictions more difficult than should be in an open, transparent justice system.

15. Second, "without delay," this Court "shall proceed to examine the causes of imprisonment or restraint. . . ." 14 M.R.S. § 5521. If necessary, this Court might hear evidence to determine whether the continued liberty restraints are lawful. 14 M.R.S. § 5523. Every person "unlawfully deprived of his personal liberty" shall be entitled to the writ, subject only to one putative limitation, to which Petitioner now turns. 14 M.R.S. § 5501.

16. In enacting Chapter 609, the legislature purported to limit the applicability of habeas corpus by excluding from its ambit those "[p]ersons committed or confined in prison or jail on suspicion of … felony. . . ." 14 M.R.S. § 5512(1). Any such restriction on the ancient writ would violate ME. CONST. Art. I, § 10's Suspension Clause: "[T]he privilege of the writ of habeas corpus shall not be suspended, unless when in cases of rebellion or invasion the public safety may require it." An unconstitutional suspension occurs whenever the

legislature purports to foreclose an avenue to the writ that was available at common law, absent the requisite "rebellion or invasion." Cf. *Kimball v. State*, 490 A.2d 653, 658-59 (Me. 1985); cf. *Fredette v. State*, 428 A.2d 395, 402 (Me. 1981); see also ME. CONST. Art. I, § 6 ("In all criminal prosecutions … [t]he accused shall not … be deprived of life, liberty, property or privileges, but by … the law of the land."). Indeed, the writ was available to alleged "felons" at common law – even then.[1] Cf. *Wade v. Warden of State Prison*, 145 Me. 120, 73 A.2d 128 (1950) (Court grants writ to individual convicted of manslaughter); *Ex parte Bollman*, 8 U.S. 75 (1807) (Court grants writ to individuals accused of treason). To the extent that 14 M.R.S. § 5512(1) intends to suspend the privilege of habeas corpus, it is therefore unconstitutional, absent the outbreak of "rebellion or invasion." ME. CONST. Art. I, § 10. To the extent, however, that this Court might conclude that 5512(1) is not unconstitutional, this Court, regardless of the applicability of the statutory habeas process, 14 M.R.S. § 5501 et seq., nonetheless retains jurisdiction to grant the writ of habeas corpus as it existed at common law. See 4 M.R.S. § 7.

17. The right to counsel enshrined by the Maine Constitution derives from both § 6 and § 6-A. See *State v. Sklar*, 317 A.2d 160, 165-67 (Me. 1974). "For

[1] Petitioners do not concede that any of the above-specified persons on whose behalf relief is sought would have qualified as felons at common law. Cf. *Harnish v. State*, 531 A.2d 1264 (Me. 1987) (Extent of § 10 – albeit, in relation to right to bail – is defined by understanding at common law); see also *Jerome v. United States*, 318 U.S. 101, 108 n. 6 (1943) (Common law felonies include "murder, manslaughter, arson, burglary, robbery, rape, sodomy, mayhem, and larceny.") (citing Wharton, Criminal Law (12th ed.) § 26). Further discovery on this point is alone cause for this Court's intervention.

those who cannot afford counsel, the constitutional right imposes an affirmative obligation on the State to provide court-appointed counsel if the defendant faces incarceration whether because of a plea of guilty or no contest, or after trial." *State v. Watson*, 2006 ME 80, ¶ 14, 900 A.2d 702.

18. The federal constitutional right to counsel inheres no later than the "first appearance before a judicial officer at which the defendant is told of the formal accusation against him and restrictions are placed on his liberty." *Rothgery v. Gillespie County*, 554 U.S. 191, 194 (2008). This means, in Maine state courts, the federal right to counsel applies no later than the initiation of any "proceeding" in the criminal matter. See M.R.U.Crim. P. 44(a). Indeed, this initial period – "'that is to say, from the time of [defendants'] arraignment until the beginning of their trial'" – represents perhaps "'the most critical'" stage at which counsel must be provided. *Brewer v. Williams*, 430 U.S. 387, 398 (1977) (quoting *Powell v. Alabama*, 287 U.S. 45, 57 (1932)).

19. Fundamentally, the authority attendant to a criminal prosecution to detain a defendant or impose conditions upon her liberty, including bail conditions, see *Gerstein v. Pugh*, 420 U.S. 103, 114 (1975) (noting that "burdensome conditions" "effect a significant restraint of liberty"), is contingent upon the State's provision of "procedural safeguards" such as appointment of competent counsel. See *United States v. Salerno*, 481 U.S. 739, 755 (1987). A recent decision from the

United States District Court for the District of Oregon is illustrative. *Betschart et al. v. Garrett et al.*, 2023 U.S. Dist. LEXIS 144139, 2023 WL 5288098, Case No.: 3:23-cv-01097-CL (D. Or. Aug. 17, 2023) (McShane, J.) (page numbers refer to slip opinion). After the county failed to provide counsel for defendants restrained attendant to criminal prosecutions in Oregon state courts, the petitioners pressed for habeas corpus in federal court. *Id.* at * 2. The federal court ordered the jailers to release the petitioners for whom no counsel could be appointed within ten days. *Id.* at * 13. The court reasoned:

> No reliable process guaranteed by the Fourteenth Amendment is present when an indigent defendant is required to proceed against the power of the state without counsel. They are unable to adequately argue for conditional release, secure witnesses, review discovery, challenge the charging instrument, intervene in the Grand Jury process, negotiate with the prosecution in an arms-length fashion, request the preservation of evidence, or challenge the length of their confinement through speedy trial statutes. For some, an uncounseled guilty plea is the only avenue out of custody.

Id. at ** 11-12. The same reasoning applies in Maine, and this Court should accept the solemn duty of ordering the release of similarly situated Mainers rather than require them to resort to federal court to obtain that relief. Of particular concern, given this state's robust privilege against self-incrimination, see, e.g., *State v. Collins*, 297 A.2d 620, 626 (Me. 1972), is the specter of defendants being

coerced to plead guilty, imprisoned or otherwise restrained without access to counsel or the relief counsel might help them obtain.

20. Petitioners here seek further relief, it is true, than that granted in the Oregon case. There are two reasons for that. One, the Oregon petitioners did not request specific relief other than "conditional release from custody, or, in the alternative, provision of sufficient money for class members to hire private attorneys. . . ." See Petition Pursuant to 28 U.S.C. § 2241 for Writ of Habeas Corpus by Persons in State Custody, Case No.: 3:23-cv-01097 ** 16-17 (PACER No. 1). Two, there is ambiguity about whether federal judges have authority, pursuant to 28 U.S.C. § 2241 et seq., to do anything other than order discharge from custody. See *Fay v. Noia*, 372 U.S. 391, 430-31 (1963) ("Habeas lies to enforce the right of personal liberty; when that right is denied and a person confined, the federal court has the power to release him. Indeed, it has no other power; it cannot revise the state court judgment; it can act only on the body of the petitioner."). In our proceeding, in contrast, this Court unambiguously retains authority to grant relief such as the cessation of any liberty restrictions, including bail conditions. See 14 M.R.S. § 5501 (habeas vindicates any deprivation of "personal liberty"); see also 14 M.R.S. § 5515 (habeas court shall inspect case for unlawful imprisonment and restraint on liberty; ignoring the latter would render it surplusage).

PRAYER FOR RELIEF

1. This Court should expeditiously order discovery of the data necessary to identify persons entitled to relief, as requested above. Supra ¶ 14.

2. This Court should expeditiously convene any evidentiary hearing necessary to decide this petition on its merits.

3. This Court should expeditiously order that the Respondents immediately release from imprisonment those persons subject to relief.

4. This Court should expeditiously order that the Respondents immediately vacate any liberty restrictions – including bail conditions of any degree – imposed against those persons subject to relief.

Respectfully submitted this 20th Day of September 2023,

By the Petitioners,

Robert J. Ruffner, Esq. #8855
MAINE INDIGENT DEFENSE CENTER
148 Middle Street, Suite 1D
Portland, ME 04101
(207) 236-0020
rjr@mainecriminaldefense.com

/s/ Rory A. McNamara
Rory A. McNamara, Esq. #5609
DRAKE LAW LLC
P.O. Box 143
York, ME 03909
(207) 475-7810
rory@drakelawllc.com

CERTIFICATE OF FILING AND SERVICE

I hereby certify that:

- I filed a copy of this Petition with the Maine Supreme Judicial Court by hand-delivery and email. See M.R.U.Crim. P. 46(d) & 49(d) & Advisory Committee Note [1998];
- I have caused to be delivered, or have attempted to cause to be delivered, a copy of this Petition to:
    - Respondent Sheriff Peter A. Johnson or his authorized staff at Aroostook County Sheriff's Office in Houlton, by hand, and by email to peter.johnson@aroostook.me.us;
    - Respondent Sheriff William L. King at York County Sherriff's Office or his authorized staff at York County Sheriff's Office in Alfred, by hand, and by email to wlking@co.york.me;
    - Respondent Hon. Sarah Gilbert by U.S. Mail to 62 Union Street, Rockland, ME 04841-2836, and by email to sarah.gilbert@courts.maine.gov;
    - Respondent Hon. Carrie Linthicum by U.S. Mail to 144 Sweden Street, Caribou, ME 04736, and by email to carrie.linthicum@courts.maine.gov; and
    - To the Office of the Maine Attorney General, by hand, in Augusta.